

Court No. - 29

Case :- WRIT - C No. - 40563 of 2024

Petitioner :- Smt Krishna Devi

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Amit Kumar Shukla

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard Sri Amit Kumar Shukla, learned counsel for the petitioner as well as Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel appearing for the State respondents no. 1 to 3 and Sri Pranjal Mehrotra, learned counsel for the respondent no. 4 and 5.

2. Present petition has been filed for quashing the demand letter dated 19.11.2022 issued by the respondent no. 5 as well as recovery proceeding pursuant to said demand letter. It is further prayed to direct the respondents to receive the recovery amount in easy installments.

3. We find that present petition suffers from laches of 651 days, however, learned counsel for the respondent no. 5 has gracefully submitted that in case the petitioner files an application under Clause 6.14 of the UP Electricity Supply Code, 2005 for granting installment facility, the same shall be considered by the respondent no. 5-Executive Engineer, Electricity Distribution, Division I, District Moradabad on its own merit.

4. Present petition is accordingly disposed of with liberty to the petitioner to avail the aforesaid facility by filing a representation/application under Clause 6.14 of the UP Electricity Supply Code, 2005 along with certified copy of this order within two weeks from today. The same shall be considered and decided by the respondent no. 5-Executive Engineer, Electricity Distribution, Division I, District Moradabad on its own merit.

5. Petitioner is also at liberty to avail the facility of one time settlement (OTS), if there is any.

6. It is made clear that this Court has not considered the merits of the case of the petitioner.

Order Date :- 6.12.2024

Abhishek